



EVL1 — Introduction to Evidence and Proof

Module 8 — Corroboration

Lesson 2: Corroboration in Criminal Cases

Student Lesson Notes

ACCOMPLICE EVIDENCE AND CORROBORATION

Why Accomplice Evidence is Dangerous

An accomplice is a person who was themselves involved in the commission of the crime. When an accomplice gives evidence for the prosecution against a co-accused, their testimony carries particular risks:

- May be testifying in exchange for reduced charges or immunity.
- May shift blame onto others to protect themselves.
- May minimise their own role while exaggerating the accused's.
- May have personal animosity toward the accused.

The Rule and Its Modification

The court must still warn itself of the specific dangers of accomplice evidence and consider whether independent corroboration exists. After a genuine warning, a court may convict on uncorroborated accomplice evidence if satisfied the testimony is reliable in the particular circumstances. The warning must be genuine — a perfunctory warning is vulnerable to challenge on appeal.

ONE ACCOMPLICE CANNOT CORROBORATE ANOTHER. Both are in the same unreliable category — their accounts cannot provide mutual corroboration. Independent evidence from outside their category is required.

R v Baskerville [1916] 2 KB 658 — Arose specifically in the context of accomplice evidence — defined the corroboration standard applied across the Commonwealth including Uganda.

Corroboration Warning — Best Practice in Judgment

- 1. Identify that this is a case where a corroboration warning is necessary.
- 2. Warn itself in clear terms of the specific dangers of accomplice evidence.
- 3. Look for corroboration applying the Baskerville test — independent, implicates the accused, material particular.
- 4. State clearly whether convicting with or without corroboration and explain why it is safe to do so.

THE RULE IN R V BASKERVILLE

The Case

R v Baskerville [1916] 2 KB 658 is the foundational Commonwealth case on corroboration, decided by the English Court of Criminal Appeal. It has been adopted and applied in Ugandan courts as persuasive authority. Every Ugandan law student must know this case, its holding, and its three-part definition.

Holding

Corroboration must be independent testimony which affects the accused by connecting him with the crime — confirming in some material particular not only that the crime was committed but that the accused committed it.

Three Requirements Applied

- 1. Independence:** The corroborating evidence must come from an independent source. Cannot come from the same witness being corroborated. Cannot come from another witness in the same unreliable category.

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- 2. Implication of the Accused:** Must implicate the specific accused in the specific crime. Evidence only confirming a crime was committed without connecting the accused to it is NOT Baskerville corroboration.
- 3. Material Particular:** Must go to a material particular — something relevant to the accused's guilt. Confirmation of a peripheral detail does not satisfy this requirement.

How Baskerville is Applied in Uganda

When a Ugandan court considers whether evidence amounts to corroboration, it applies the Baskerville test methodically. Ugandan appellate decisions challenging convictions in corroboration-sensitive cases frequently turn on whether the trial court correctly applied all three Baskerville requirements.

Ntambala v Uganda *Criminal Appeal No. 34 of 2015* — Ugandan Court of Appeal examining whether the trial court properly applied the corroboration warning and Baskerville test — requiring genuine engagement not formulaic recitation.

CORROBORATION IN UGANDAN CRIMINAL PRACTICE

Identification Evidence — A Special Category

Identification evidence occupies a special position in corroboration analysis. Where the accused's defence is mistaken identity — that the witnesses are honest but simply wrong about who they saw — the court must approach identification evidence with particular care.

Uganda v Ntambazi [1996] HCB 29, *High Court of Uganda* — Established the foundational procedural rules for conducting fair police identification parades in Uganda to prevent misidentification. The case established step-by-step safeguards that must be followed when conducting identification parades.

Failure to follow proper identification parade procedures affects the weight of identification evidence and may require more cogent corroboration before the court can safely act on it.

Confession Evidence

Uganda v Doyi Wabwire Kyoyo (1976) HCB 212, *High Court of Uganda* — Established foundational procedural safeguards that magistrates must follow when taking confessions from accused persons to ensure voluntariness and protect against coercion.

Current Position Summary

- Accomplice evidence: judicial warning approach — genuine warning required, court may convict if satisfied of reliability after proper consideration.
- Identification evidence: fair parade procedures required (Uganda v Ntambazi [1996] HCB 29) — failure to follow procedures weakens evidence and increases need for corroboration.
- Confession evidence: procedural safeguards required (Uganda v Doyi Wabwire Kyoyo (1976) HCB 212) — failure to satisfy safeguards may result in exclusion.

LESSON SUMMARY — KEY POINTS

- ✓ Accomplice evidence carries inherent dangers — accomplice may have incentives to lie, shift blame, or minimise their role
- ✓ Court must warn itself genuinely of the dangers before convicting on accomplice evidence
- ✓ After genuine warning, court may convict on uncorroborated accomplice evidence if satisfied of reliability

- ✓ ONE accomplice CANNOT corroborate another — both require independent corroboration
- ✓ R v Baskerville [1916] 2 KB 658 — foundational case on corroboration, persuasive authority in Uganda
- ✓ Three Baskerville requirements: independent source, implicates the accused, material particular — all three must be satisfied
- ✓ Uganda v Ntambazi [1996] HCB 29 — foundational rules for fair identification parades to prevent misidentification
- ✓ Uganda v Doyi Wabwire Kyoyo (1976) HCB 212 — procedural safeguards for magistrates taking confessions

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. Why is accomplice evidence considered potentially unreliable in Ugandan courts?
2. State the four steps a court must take in its judgment when dealing with accomplice evidence.
3. Can one accomplice corroborate another accomplice? Explain using the Baskerville requirements.
4. State the principle established in Uganda v Ntambazi [1996] HCB 29 and explain its significance for corroboration analysis.
5. CCTV footage places the accused at the crime scene at the relevant time. Does this satisfy all three Baskerville requirements? Explain each.